All Done Sites

Subscription Agreement

Website design, hosting and maintenance

Version 2026-09-17 · Prepared for Anelma le Roux

> **In plain English:** This is the one agreement you sign with All Done Sites for our subscription website service. It covers ownership, payments, support, SEO, cancellation, transfer/buyout and liability.

1 Parties; Effective Date; Order Of Precedence

This Subscription Agreement ("Agreement") is entered into by and between All Done Sites ("Provider") and the entity or individual identified on the applicable order, proposal or checkout page ("Client"). This Agreement becomes effective on the date the Client accepts the order or signs the proposal (the "Effective Date"). Any order form or proposal (each, an "Order") is incorporated by reference. If there is a conflict between this Agreement and an Order, the Order governs only as to pricing, plan tier and term; otherwise this Agreement controls.

2 Definitions

Agreement This contract for subscription website services between Provider and Client.

Branding The Client’s trademarks, logos, colour schemes, fonts and other brand assets supplied by Client.

Content Text, images, video, audio and other materials the Client supplies for inclusion on the Website.

Website The website and related software, templates, themes, components and configurations created or provided by Provider under the subscription.

Small Content Update Minor tasks such as swapping photos, editing text or adding a single new section.

Additional Work Changes outside a Small Content Update, including new pages, redesigns, custom features or integrations.

Fair Market Value (FMV) A good-faith valuation for purchasing the Website’s code/design considering:

- time and skill required to recreate the deliverables
- prevailing hourly rates
- comparable market pricing
- third-party license buyouts and transfer costs

Term The initial and any renewal period of the subscription specified in the Order.

3 Scope Of Services

Provider will design, build and host the Website and provide maintenance and support during the Term according to the plan tier selected: Launch, Business or Premium. Most sites are ready in 7–14 days depending on complexity and timely Client approvals and content. Small Content Updates are included as part of ongoing maintenance; Additional Work is out of scope and will be quoted and billed separately.

Provider can connect Client's existing domain or assist with registration and set up professional email addresses. Provider may use third-party themes, plugins, fonts, analytics, CDNs or hosting. Licenses remain with Provider unless expressly assigned.

4 Client Responsibilities

Client will (i) provide Branding and Content, accurate business information and timely feedback/approvals; (ii) warrant it owns or has rights to all supplied Content and Branding; and (iii) comply with applicable laws, including privacy and marketing laws (e.g. POPIA). Client is responsible for the accuracy and legality of all Content.

5 Ownership; License; Access

Client owns its Branding and Content. Provider owns the Website design, code, templates, components, build scripts, configurations and other IP created or provided by Provider. While the subscription is active, Provider grants Client a limited, non-exclusive, non-transferable license to use and publicly display the Website hosted by Provider for Client's business purposes. Provider may restrict back-end access to protect platform integrity. Full code/database access is provided only upon Buyout under Section 10. The Website is not a work-for-hire and no assignment of Provider IP occurs unless and and until Buyout is completed. The Website includes a discreet footer credit, "Built and maintained by All Done Sites", linking to https://alldonesites.com, while the subscription is active; removal can be arranged on request.

6 Seo Levels

- Launch Plan – Basic SEO setup for launch.
- Business Plan – Solid SEO optimisation for good search visibility, without ongoing analytics or performance enhancements.
- Premium Plan – Enhanced SEO with ongoing analytics, reporting and performance improvements. No specific rankings are guaranteed.

7 Term; Minimum Commitment; Cancellation

The standard minimum commitment is twelve (12) months. If Client is invited to an introductory one-month trial, Client may cancel at the end of that month with no further charges. Client may terminate early but remains liable for all remaining amounts due through the end of the twelve-month term. After the initial twelve-month term is satisfied and all amounts are paid, the Website's code and files will be transferred to Client at no additional charge, so the site is Client's to keep or move (subject to the third-party license limitations in Section 10). Client must give written notice of cancellation. Provider will coordinate a smooth transition of Client's Branding and Content.

8 Fees; Invoicing; No Refunds; Taxes

Fees are due monthly in advance within the first five business days of each month unless otherwise stated in the Order. Out-of-scope work will be quoted and, once approved, billed at the then-current rates. Payments are non-refundable. Fees are exclusive of VAT and other taxes, which will be added where applicable. International Clients may be charged in their local currency; conversions are handled by the payment processor.

9 Non-Payment; Suspension; Data Retention

If payment stops, the Website remains online for thirty (30) days. Thereafter the Website may be suspended and a backup will be retained for three additional months. If payment is not received within that retention period, the Website and associated files may be permanently deleted. Provider may charge a reactivation fee to restore suspended service.

10 Buyout; Transfer To Another Host

After the initial twelve-month term is satisfied and all amounts are paid, the Website (design and code) will be transferred to Client at no additional charge, except for non-transferable third-party licenses (e.g. premium themes/plugins, fonts), which Client must license itself. Before the twelve-month term is completed, Client may instead elect to purchase the Website (design and code) at Fair Market Value (FMV) plus the cost of any Additional Work and third-party license buyouts/transfer fees.

FMV will consider the following:

- estimated hours to recreate deliverables multiplied by Provider's standard hourly rates
- comparable market values
- license replacement costs

Upon receipt of Buyout payment, Provider will deliver a reasonable export (e.g. code bundle and database dump where applicable) and provide limited transition assistance. Certain licenses (e.g. premium themes/plugins, fonts) may be non-transferable; Client must obtain its own licenses post-transfer.

11 Service Levels; Maintenance; Security

Hosting, updates and security patches are included while the subscription is active. Critical issues affecting site availability will be addressed within twenty-four (24) hours; non-critical requests will be scheduled within a commercially reasonable timeframe. Provider maintains backups and monitoring on a best-effort basis. Internet, hosting and third-party failures may occur; Provider does not warrant uninterrupted or error-free service.

12 Content Standards; Compliance; Data Protection

Client is solely responsible for all Content and for maintaining lawful privacy and terms pages where applicable. Client must comply with marketing and privacy laws (including POPIA) when collecting personal information. To the extent Provider processes personal information on Client's behalf, Provider acts as an operator under POPIA and will process such data only on Client's lawful instructions.

13 Additional Work; Changes In Scope

Provider may in good faith determine that a request constitutes Additional Work or a scope change and may quote a revised recurring fee or a one-off project fee. Work will commence once approved.

14 Confidentiality

Each party may receive confidential information ("Confidential Information") from the other. The receiving party will use the disclosing party's Confidential Information solely to perform under this Agreement and will protect it using reasonable measures. Exceptions include information that is public, independently developed, rightfully received from a third party or required to be disclosed by law.

15 Warranties; Disclaimers; Limitation Of Liability

Each party warrants it has the authority to enter into this Agreement. Client warrants it owns or has obtained rights to all Content and Branding supplied. Except as expressly stated, the services are provided "as is" without warranties of any kind. Provider disclaims implied warranties of merchantability, fitness for a particular purpose and non-infringement. To the maximum extent permitted by law, Provider's aggregate liability arising out of or related to this Agreement will not exceed the amounts paid by Client to Provider in the twelve months immediately preceding the claim. In no event will Provider be liable for indirect, incidental, special, exemplary, punitive or consequential damages, or loss of profits, revenue, data or goodwill.

16 Force Majeure

Neither party will be liable for delays or failures due to events beyond its reasonable control, including acts of God, internet or hosting failures, civil disturbances, labour disputes or governmental actions.

17 Suspension; Termination For Cause

Provider may suspend or terminate the service for the following reasons:

- Non-payment
- Material breach not cured within ten (10) days after notice
- Unlawful, infringing or abusive use

Upon termination for cause, outstanding fees become immediately due.

18 Governing Law; Dispute Resolution

This Agreement is governed by the laws of the Republic of South Africa, without regard to conflict-of-law rules. The parties will first attempt to resolve disputes amicably; failing that, they will submit to mediation, and if unresolved, the courts of the Western Cape, South Africa will have exclusive jurisdiction.

19 Entire Agreement; Amendments; Assignment; Notices

This Agreement, together with any Orders, constitutes the entire agreement and supersedes prior proposals and understandings. Amendments must be in writing and signed. Client may not assign this Agreement without Provider’s consent. Notices must be in writing and delivered by email or registered post to the addresses on the Order.

A Schedule A · Order

This Order forms part of the Agreement. Where this Order and the Agreement differ on pricing, plan tier or term, this Order governs.

ITEM	DETAIL	AMOUNT
Lounah Collective	Website build. Normal price R24,000.	**R17,000**
Baie Goeters	Website build. Normal price R14,000.	**R10,000**
Monarch Coffee Cartel	Online shop build. Normal price R32,000.	**R22,000**
Build total	All three sites together, normal price R70,000.	**R49,000**
Monthly service — Lounah Collective	Hosting, email at the Client's own domain, security, backups and support. Ongoing.	**R800 / month**
Monthly service — Baie Goeters	Hosting, email at the Client's own domain, security, backups and support. Ongoing.	**R800 / month**
Monthly service — Monarch Coffee Cartel	The same, plus the online shop: orders, stock and payments. Ongoing.	**R1,400 / month**
Monthly service, all three	R800 + R800 + R1,400 = R3,000 per month. Includes a bank of 8 hours a calendar year of changes per website, 24 hours for all three, usable on any of the websites.	**R3,000 / month**
Build repayment	Option 1 only. Twelve monthly instalments, then it stops.	**R4,100 / month**
Option 1 total, first year	R4,100 + R3,000 = R7,100 a month for twelve months, then R3,000 a month.	**R7,100 / month**
Option 2, build paid directly	R22,050 on signing and R22,050 on completion, then R3,000 a month.	**R44,100**

- No VAT is charged on any amount in this Order.
- No minimum term applies to this Order. Clause 7 of the Agreement is varied accordingly, and the Client may cancel at any time on written notice.
- Under Option 1 the Websites and their code transfer to the Client after twelve months of payment, per clause 7. Under Option 2 they transfer once the build is paid in full.
- The monthly service fee includes a bank of change hours: 8 hours per calendar year for each website on this Order, 24 hours while all three are on it. The hours may be used on any of the websites, whenever needed. Unused hours do not carry over to the next calendar year. Changes beyond the bank are charged at R700 per hour, billed in one-hour blocks. Every monthly invoice shows the hours used and the hours left.
- Clause 3 of the Agreement is varied accordingly: for this Order, Small Content Updates are included only within the bank of change hours, and clause 1 is varied so that this note governs.
- The monthly amount for each website stands on its own. If a website is removed from this Order, the monthly service fee reduces by that website's amount and the bank of change hours reduces by 8 hours a year. A website added to this Order is R800 per month, or R1,400 per month where it sells online, and adds 8 hours a year to the bank.
- Payment gateway fees charged by Paystack on each sale are for the Client's account and are not included in the amounts above.
- Additional mailboxes on the Client's own domain are R40 per month each.

• A new page or a new feature is quoted first and only started once the Client approves the quote.

Signatures

By signing below, each party agrees to be bound by this Agreement and the Order in Schedule A.

CLIENT

BUSINESS NAME
Anelma le Roux

SIGNED BY (FULL NAME)

CAPACITY

SIGNATURE

DATE

PLACE

PROVIDER

BUSINESS NAME
All Done Sites

SIGNED BY (FULL NAME)
Jonathan Avis

CAPACITY
Owner

SIGNATURE

DATE

PLACE

Send the signed agreement →

Tap the button, then attach a photo or a scan of these signed pages. Or email them to hello@alldonesites.com.